

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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THOMAS BAPTISTE AND T'SAI ALEXANDER JOSEPH,

PLAINTIFFS,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER CHRISTIAN PEREZ, TAX ID 966266, POLICE OFFICER MARTIN MORAALMONTE, TAX ID 972126, POLICE OFFICER NICHOLAS CARDIERI, TAX ID 965968, POLICE OFFICER CARLOS ALVAREZ, TAX ID 942945, POLICE OFFICER FRANCESCA LOVERTRO, TAX ID 969181, POLICE OFFICER JULIO MARTINEZ, TAX ID 958882, POLICE OFFICER IHAB GINEM, TAX ID 962433, POLICE OFFICER LARRY FENG, TAX ID 9650087, POLICE OFFICER DENNIS DIAZ, TAX ID 966541, SGT. LEONARDO DEOLIVEIRA, TAX ID 946681, POLICE OFFICER DERICK DEJONGE, TAX ID 968372, POLICE OFFICER DENNIS WU, TAX ID 961463, POLICE OFFICER SARAH CHIRONNO, TAX ID 967000, POLICE OFFICER JEFREY AGUILERA, TAX ID 975265, POLICE OFFICER MEHMET KANBUR, TAX ID 937826, POLICE OFFICER FABIAN MODESTO, TAX ID 950897, POLICE OFFICER DANIEL McDONALD, TAX ID 949299, POLICE OFFICER ANTHONY WARNER, TAX ID 957271, AND POLICE OFFICERS JOHN DOE #1-6 (FICTITIOUS NAMES BECAUSE THEIR IDENTITIES ARE UNKNOWN), ALL SUED IN THEIR INDIVIDUALLY CAPACITY AND AS POLICE OFFICERS,

DEFENDANTS.

-----X
To the above-named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs' Attorney with twenty (20) days after the service of this summons, exclusive of the day of service (30) days after the service is complete if the summons is not personally delivered to you within the State of New York; and in case you fail to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

SUMMONS

INDEX NO.

Plaintiffs designate Kings County as the Place of Trial. The basis of venue is that Kings County is the place where the cause of action arose.

Dated: New York, New York
May 18, 2024

/s/ Royce Russell

ROYCE RUSSELL, ESQ.
R-SQUARE ESQ, PLLC.
Attorneys for the Plaintiffs
112 West 34th Street#18 Flr.
New York, New York 10120
Tel. (718) 785-8890

Defendants' Addresses:

City of New York
Office of the Corporation Counsel
100 Church Street, 4th Flr.
New York, New York 10007

New York City Police Department
One Police Plaza
New York, N.Y. 10007

Police Officer Christian Perez, Tax ID 966266
c/o 67th Pct
2820 Snyder Ave.
Brooklyn, NY 11226

Police Officer Martin MoraAlmonte, Tax ID 972126
c/o 67th Pct
2820 Snyder Ave.
Brooklyn, NY 11226

Police Officer Nicholas Cardieri, Tax ID 965968
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Sgt. Carlos Alvarez, Tax ID 942945
c/o 67th Pct
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Police Officer Francesa Lovetro, Tax ID 969181
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Police Officer Dennis Diaz, Tax ID 966541
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Police Officer Leonardo Deoliveira, Tax ID 946681
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Police Officer Derick DeJonge, Tax ID 968372
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Police Officer Dennis Wu, Tax ID 961463
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Police Officer Sarah Chironno, Tax ID 967000
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Police Officer Jeffrey Aguilera, Tax ID 975265
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Police Officer Mehmet Kanbur, Tax ID 937826
c/o 67th Pct
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Police Officer Fabian Modesto, Tax ID 950897
c/o 67th Pct
2820 Snyder Ave.
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Police Officer Daniel McDonald, Tax ID 949299
c/o 67th Pct
2820 Snyder Ave.
Brooklyn, NY 11226

Police Officer Anthony Warner, Tax ID 957271
c/o 67th Pct
2820 Snyder Ave.
Brooklyn, NY 11226

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
THOMAS BAPTISTE AND T'SAI ALEXANDER JOSEPH,

PLAINTIFFS,

-against-

VERIFIED COMPLAINT

INDEX NO.

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER CHRISTIAN PEREZ, TAX ID 966266, POLICE OFFICER MARTIN MORAALMONTE, TAX ID 972126, POLICE OFFICER NICHOLAS CARDIERI, TAX ID 965968, POLICE OFFICER CARLOS ALVAREZ, TAX ID 942945, POLICE OFFICER FRANCESCA LOVERTRO, TAX ID 969181, POLICE OFFICER JULIO MARTINEZ, TAX ID 958882, POLICE OFFICER IHAB GINEM, TAX ID 962433, POLICE OFFICER LARRY FENG, TAX ID 9650087, POLICE OFFICER DENNIS DIAZ, TAX ID 966541, SGT. LEONARDO DEOLIVEIRA, TAX ID 946681, POLICE OFFICER DERICK DEJONGE, TAX ID 968372, POLICE OFFICER DENNIS WU, TAX ID 961463, POLICE OFFICER SARAH CHIRONNO, TAX ID 967000, POLICE OFFICER JEFREY AGUILERA, TAX ID 975265, POLICE OFFICER MEHMET KANBUR, TAX ID 937826, POLICE OFFICER FABIAN MODESTO, TAX ID 950897, POLICE OFFICER DANIEL McDONALD, TAX ID 949299, POLICE OFFICER ANTHONY WARNER, TAX ID 957271, AND POLICE OFFICERS JOHN DOE #1-6 (FICTITIOUS NAMES BECAUSE THEIR IDENTITIES ARE UNKNOWN), ALL SUED IN THEIR INDIVIDUALLY CAPACITY AND AS POLICE OFFICERS,

DEFENDANTS.

-----X

Plaintiffs, Thomas Baptiste and Tsai Joseph by their attorneys, R-SQUARE, ESQ., PLLC.,
as and for a Verified Complaint allege as follows:

PARTIES

1. Upon information and belief and at all times hereinafter mentioned, the defendant, the City of New York, hereinafter referred to as "CITY", was and still is a municipal corporation duly organized and existing under, and by virtue of the laws of the State of New York.

2. Upon information and belief and at all times hereinafter mentioned the defendant CITY, its agents, servants and/or employees operated, maintained and controlled the New York City Police Department, hereinafter referred to as “NYPD”, including all the Police Officers therein.
3. Upon information and belief, at all times hereinafter mentioned and on the 20TH day of May 2023, Police Officers Christian Perez, Martin Moraalmonite, Nicholas Cardieri, Carlos Alvarez, Francesa Lovetro, Julio Martinez, Ihab Ginem, Larry Feng, Dennis Diaz, Leonardo Deoliveiri, Derrick DeJonge, Dennis Wu, Sarah Chironno, Jefrey Aguilera, Mehmet Knabur, Fabian Modesto, Daniel McDonald, Anthony Warner, hereinafter collectively referred to as “DEFENDANTS/POLICE OFFICERS”, were employed as Police Officers by the “CITY” and/or “NYPD”, and at all relevant times set forth below were assigned to the 67th Pct., and acted in their respective capacities as Police Officers and employees of the CITY and/or NYPD.
4. Upon information and belief, at all times hereinafter mentioned, and on the 20th day of May 2023, John Doe #1-6, hereinafter referred to as ‘Does’ named herein in a fictitious capacity as their identities are presently unknown, were employed as Police Officers by the “CITY” and/or “NYPD”, and at all relevant times set forth below were assigned to the 74th Pct., and acted in their respective capacities as Police Officers and employees of the CITY and/or NYPD.
5. Upon information and belief, other unknown Police Officers named herein in fictitious capacities as their names are currently unknown, all times hereinafter mentioned, and on the 20th day of May 2023 were employed as a Police Officer(s) by the “CITY” and/or “NYPD”, and at all relevant times set forth below were assigned to the 67th Pct., and acted in the capacity as Police Officers and employees of the CITY and/or NYPD.
6. Hereinafter all the Police Officers present at the location set forth below are collectively referred to as “The Officers”.

7. The incident set forth below occurred on May 20, 2023, at approximately 1:00 a.m., in the vicinity of Linden Blvd., and Brooklyn Avenue, in the County of Kings, State of New York, hereinafter referred to as “the location”.
8. At all relevant times hereinafter mentioned, the Plaintiffs Baptiste and Joseph, were residents of Queens County, residing at 172-17 Brocher Road, Jamaica, New York 11434.
9. Baptiste and Joseph shall hereinafter collectively be referred to as the “Plaintiffs”.
10. The Plaintiffs have each individually filed Notices of Claim advising of the nature of their claims. The Plaintiffs have each submitted to a 50H hearing.
11. The Defendants have not offered to settle the Plaintiffs’ claims.
12. This action is brought within a year and ninety days of the date when the causes of action arose.

STATEMENT OF FACTS

13. At the aforementioned date, time, and location, the Plaintiffs were detained by the police when they flashed their headlights.
14. Plaintiff Joseph immediately stopped as the Defendants/Police Officers blocked the vehicle.
15. Plaintiff Joseph turned the engine off as the Defendants/Police Officers yelled “Get out of the car.” The Defendants/Police Officers had their weapons unholstered and drawn at the Plaintiffs.
16. The Plaintiffs were surrounded by police cars, both unmarked and blue and white police cars.
17. Plaintiff Baptist recalled that two-three Police Officers approached his side of the car, the passenger side, and Plaintiff Joseph recalled that two-three Police Officers on the driver's side.

18. The Plaintiffs were ordered out of the vehicle. The Plaintiffs were searched at the location as they stood at the back of their vehicle.
19. Plaintiff Joseph objected to Police Officer DeJonge searching her because he is male.
20. Plaintiff Joseph informed Police Officer DeJonge that she knew her rights and that he could not search her. Police Officer DeJonge stated, "He can do what he wants" as he searched her waist and breast area grabbing her pockets to a tight-fitted low-cropped sweater around her waist.
21. Plaintiff Joseph was then escorted to a blue and white police car and transported to the 67th Pct.
22. Plaintiff Joseph was never told why she was detained, searched, handcuffed, and arrested.
23. At the 67th Pct., Plaintiff Joseph was forced to remove all her personal items and was searched again before being placed in a cell.
24. Plaintiff Joseph was detained for approximately two hours before her release.
25. Defendant Police Officer DeJonge asked Plaintiff Joseph if she would take responsibility for all the items in the vehicle. Plaintiff Joseph stated, "Yes." Plaintiff Joseph wondered why she was questioned about items in the vehicle because the items in the car were legal and related to her child.
26. Defendant Police Officer DeJonge became more aggressive with every interaction with Plaintiff Joseph, so she stopped talking to the Defendant officer.
27. Plaintiff Joseph was told not to worry because she would not be fingerprinted. She was also told to watch the company she kept as she was released from the Precinct.
28. Plaintiff Joseph was not issued a Summons or Desk Appearance Ticket. The vehicle was impounded and kept at the 67th Precinct.

29. Plaintiff Baptiste was also searched at the detention location at the back of the vehicle. He was handcuffed over his objection to the illegal search of his person and property/vehicle.
30. He also objected when Defendant Police Officer DeJonge broke the vehicle's rear window wiper ripping it from the window. He then shattered the rear window with his flashlight by banging the flashlight several times against the window.
31. Plaintiff Baptiste was ordered to "shut up" as he objected to the detention and the search of his person and property.
32. Plaintiff Baptiste heard additional banging against the vehicle for which he observed his passenger-side window broken.
33. During the entire detention, the Police Officers had their guns and tasers drawn at the Plaintiffs.
34. Plaintiff Baptiste was transported to the 74th Precinct. At the 74th Precinct, he was ordered to take a breathalyzer.
35. Plaintiff Baptiste requested to urinate but was refused. Defendants Doe #1-6 stated that if he took the breathalyzer, he would be allowed to urinate. Defendant Police Officers Doe #1-6 never conducted the test.
36. Plaintiff Baptiste was at the 74th Precinct for approximately two hours before being transported to the 67th Pct.
37. Plaintiff Baptiste was detained overnight. He was eventually presented before the Court and was released without any financial or personal restrictions.
38. All aforementioned conduct was committed by the CITY, their agents, servants, or employees while acting within the scope of their employment.

39. The City, their agents, servants, or employees intended to confine the Plaintiffs, the Plaintiffs were conscious of confinement and did not consent thereto, and the confinement was not otherwise privileged, all without just right, probable cause, and grounds therefor.
40. The City, their agents, servants, and employees as aforementioned committed battery and assault upon the Plaintiffs, without just cause or justification, and in an excessive manner and force, intentionally caused physical contact, causing serious injuries to the Plaintiffs' mind and body.
41. The Plaintiffs were aware of the threat of imminent harm and unconsented contact and feared it while the Defendant Police Officers had the apparent ability to cause said unlawful and unconsented contact and harm and actually caused it to occur.
42. It is hereby alleged, pursuant to CPLR 1603, that this action is exempt from the operation of CPLR 1601 from the operation of CPLR 1601, by reason of one or more of the exemptions provided in CPLR 1602.

**AS AND FOR A FIRST THROUGH SECOND CAUSES OF ACTION AGAINST
ALL DEFENDANTS FOR FALSE IMPRISONMENT/ARREST ON BEHALF OF THE
PLAINTIFFS EACH WITH A CAUSE OF ACTION RESPECTIVELY ALLEGE:**

43. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked "1" through "42" with the same force and effect as if more fully and at length set forth herein.
44. That on the 20th day of May 2023, at or between the approximate hours of 1:00 a.m., the Defendants, and their agents, servants, and/or employees intentionally held, detained, imprisoned, and/or arrested the Plaintiffs without any just cause or grounds, therefore.
45. Each of said Plaintiffs was held against their will under full force of arms.
46. Each Plaintiff named herein was wholly innocent of any crime and did not contribute in any way or manner to their imprisonment by the defendants, their agents, servants, and/or

employees, was forced to submit to having their freedom restricted and said imprisonment entirely against their will.

47. That the Defendants, their agents, servants, and/or employees, as set forth above, intended to seize, and confine each of the Plaintiffs' movement and freedom; each of the Plaintiffs was conscious of their confinement; each of the Plaintiffs did not consent to said confinement/imprisonment; and the confinement was not otherwise privileged.

48. That by reason of the aforesaid false imprisonment and/or arrest, each of the Plaintiffs was subjected to great indignity, humiliation, pain, and great distress of mind and body, and said Plaintiffs have been otherwise damaged.

49. That by reason of the aforesaid, the Plaintiffs, Baptiste and Joseph, have been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A THIRD THROUGH FOURTH CAUSES OF ACTION ON BEHALF OF
ALL PLAINTIFFS AGAINST ALL NAMED DEFENDANTS FOR BATTERY AND
ASSAULT EACH PLAINTIFF ALLEGES:**

50. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked "1" through "49" with the same force and effect as if more fully and at length set forth herein.

51. That commencing on the 20th day of May 2023, at the approximate hours of 1:00 a.m. inside "the location", the Defendant Police Officers and upon information and belief other officers presently unknown, while acting in the scope of their employment as police officers and as agents for the Defendants, "CITY" and "NYPD", without just cause or provocation pointed loaded weapons at the Plaintiffs, and physically searched each Plaintiff and/or handcuffed each Plaintiff.

52. Upon information and belief, the officers had absolutely no reason or just cause to batter and assault the plaintiffs.
53. The battery, assault, and physical contact were not privileged.
54. The battery and assault took place while the Plaintiffs had committed no crime.
55. That the Defendant Police Officers, their agents, servants, and/or employees, including unknown police officers, and the arresting officers, acting as agents on behalf of the Defendant "CITY" and/or "NYPD", within the scope of their employment, intentionally, willfully, and maliciously assaulted and battered each of the named Plaintiffs, in that they had the real or apparent ability to cause imminent harmful or offensive bodily contact and intentionally did an act which threatened to and did cause such contact to the Plaintiffs.
56. That said acts caused apprehension of such offensive contact to each of the Plaintiffs, and the Defendants caused such battery and assault in and about their body and limbs.
57. That by reason of the aforesaid intentional battery and assault, each Plaintiff suffered offensive contact and/or psychological injuries to his/her body and mind, and that each was otherwise damaged.
58. That by reason of the aforesaid, the Plaintiffs have been damaged in a sum exceeding the jurisdictional limits of the lower courts.

AS FOR A FIFTH THROUGH SIXTH CAUSES OF ACTION AGAINST ALL NAMED AND UNNAMED DEFENDANTS, POLICE OFFICERS AS OFFICERS, AND INDIVIDUALLY FOR 42 U.S.C. 1983 AND 1988 VIOLATIONS EACH OF THE PLAINTIFFS ALLEGE:

59. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked "1" through "58" with the same force and effect as if more fully and at length set forth herein.
60. By the aforesaid acts, the Defendant Police Officers individually and collectively have violated each Plaintiff's right: to privacy under the First and Fourteenth Amendments; to

have their property and persons be free of illegal searches and seizures under the 4th and 14th Amendments to the United States Constitution; to be free from discrimination based upon race, thereby giving rise to a cause of action pursuant to 42 USC 1983.

61. The conduct and actions of the named Defendant Police Officers, acting under color of law, in seizing each Plaintiff, and upon information and belief in searching each Plaintiff, in battering and/or assaulting each Plaintiff, in threatening the Plaintiffs, in entering their car and searching their persons absent a warrant, and in falsely imprisoning, falsely arresting, illegally searching, battering, assaulting and threatening the Plaintiffs with loaded weapons, which was done intentionally, maliciously and/or with a reckless disregard for the natural and probable consequences of their acts, was done without lawful justification, and was designed to and did cause-specific and serious bodily, mental and emotional harm, pain and suffering in violation of each of the Plaintiffs' Constitutional rights as guaranteed under 42 U.S.C. 1983, et seq.,

62. Each of the Defendant Police Officers individually and collectively deprived each of the Plaintiffs of their rights including, but not limited to the right to privacy; under the First and Fourth Amendments guaranteeing protection against unlawful seizure of their persons under the Fourth and Fourteenth Amendments, and Title 42 U.S.C. 1983 et seq.

63. That by reason of the aforesaid, the Plaintiffs have been damaged in a sum exceeding the jurisdictional limits of the lower court and seek compensatory and punitive damages, costs, attorneys' fees, and expert fees as provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

AS AND FOR A SEVENTH THROUGH EIGHTH CAUSES OF ACTION FOR NEGLIGENCE AGAINST THE "CITY", EACH OF THE PLAINTIFFS ALLEGE:

64. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked "1" through "63" with the same force and effect as if more fully and at length set forth herein.

65. That the CITY and/or NYPD were at all relevant times hereunder negligent in the testing, analyzing, screening, hiring, investigating, training, retaining, promotion, supervision, monitoring, disciplining, and/or assigning of its officers, including the Defendants named herein
66. That as a result of their negligence, the above-named Plaintiffs were falsely imprisoned, falsely arrested, illegally seized, illegally searched, battered, assaulted, and had their constitutional and civil rights violated.
67. That by reason of the aforesaid, the Plaintiffs have been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS AND FOR THE NINTH CAUSE OF ACTION FOR MALICIOUS PROSECUTION
AGAINST THE "CITY" ON BEHALF OF THOMAS BAPTISTE, THE PLAINTIFFS
ALLEGE:**

68. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked "1" through "67" with the same force and effect as if more fully and at length set forth herein.
69. The Defendants filled out false police reports and issued a Felony Accusatory instrument against Plaintiff Baptiste to prosecute him for the charge that they knew he did not commit.
70. The Defendants took such actions knowingly and with a malice disregard for the truth and did so with the intent to cover up the illegal arrest of the Plaintiff and the injuries that he sustained at the hands of the police.
71. The Plaintiff was at all times innocent of any crime charged.
72. That due to the malicious prosecution, the Plaintiff Baptiste was caused to be in conveyance and was forced to take time from his employment to defend himself as well as forego an employment opportunity.

73. That by reason of the aforesaid malicious prosecution, Plaintiff Baptiste has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

AS AND FOR A TENTH CAUSE OF ACTION:
ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. SECTIONS 1983 and 1988, BY “JOHN DOES #1-#6” FOR
FAILING TO INTERVENE AND MITIGATE AND VIOLATING PLAINTIFFS’ RIGHT
TO EQUAL PROTECTION UNDER THE LAW

74. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked "1" through "73" with the same force and effect as if more fully and at length set forth herein.

75. That at all times hereinafter mentioned, and on May 20th, 2023, Defendants Doe #1-6 were employed by the Defendant CITY, and/or the NYPD, and was acting under the color of their official capacity and their acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York, i.e. color of law.

76. That at all times, Doe #1-6 were acting pursuant to orders, directives, training, supervision, and guidelines from the Defendant CITY.

77. That during all times hereinbefore and hereinafter mentioned, “John Doe #1-6” acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs, and usages of the CITY and/or the NYPD and that they acted under the color and pretense of law, and engaged in the illegal conduct set forth this complaint to the injury of the Plaintiffs, and deprived them of the rights, privileges, and immunities secured to him by the First, Fourth, and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Section 1983 and 1986.

78. That on the date, time, and location the Plaintiffs were committing any crimes.

79. That upon information and belief, Doe #1-6, were present during said conduct, observed said conduct, could stop and/or mitigate said conduct, but elected not to do so, causing injury to the Plaintiffs.
80. That upon information and belief, the Defendants John Doe #1-6 failed to report said misconduct of their fellow officers, and/or failed to provide the Plaintiffs with equal protection under the law.
81. That as a direct proximate result of the Defendants' actions, the Plaintiffs were subjected to physical injury and subsequent arrest and confiscation of property.
82. That by reason of the aforesaid, the Plaintiffs have been damaged in a sum exceeding the jurisdiction of the lower courts and seeks compensatory damages, plus, punitive damages, costs, attorneys' fees, expert fees, and interest as set forth and provided by 42 U.S.C. Sections 1983 and 1988 against each Defendant, and such other relief as to the court may seem just and proper.

AS AND FOR AN ELEVENTH CAUSE OF ACTION:
ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. SECTIONS 1985 and 1988, AGAINST ALL NAMED AND UNNAMED
DEFENDANT POLICE OFFICERS FOR CONSPIRACY TO INTERFERE WITH CIVIL
RIGHTS

83. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked "1" through "82" with the same force and effect as if more fully and at length set forth herein.
84. The Defendant Police Officers conspired together for the purpose of impeding, hindering, obstructing, or defeating the due course of justice in the State of New York, in that they:
- a. conspired to arrest the Plaintiffs for a crime that they knew they did not commit;

b. conspired to arrest and intimidate Plaintiff Joseph by threatening her with issuing her a Desk Appearance Ticket.

85. The Defendant Police Officers acted with the intent to deny the Plaintiffs the equal protection of the law.

86. The Defendant Police Officers acted with the intent to injure the Plaintiffs or their property.

87. That by reason of the aforesaid, the Plaintiffs have been damaged in a sum exceeding the jurisdiction of the lower courts and seeks compensatory damages, plus, punitive damages, costs, attorneys fees, expert fees, and interest as set forth and provided by 42 U.S.C. Sections 1985 and 1988, under each cause of action against each Defendant, and such other relief as to the court may seem just and proper.

WHEREFORE, the Plaintiffs demand judgment against the Defendants in a sum to be determined by the trial of fact, plus costs, attorney's fees, disbursements, legal and statutory interest, and such other relief as to the court seems just and proper on the first through the eleventh causes of action, plus attorneys' fees, costs, disbursements and punitive damages, and such further relief as to the court seems just and proper.

DATED: New York, New York
May 18, 2020

/s/ Royce Russell

ROYCE RUSSELL, ESQ.
R-SQUARE ESQ, PLLC.
Attorneys for the Plaintiffs
112 West 34th Street#18 Flr.
New York, New York 10120
Tel. (718) 785-8890

ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York certifies as follows:

That I am an attorney associated with the law firm of R-SQUARE, ESQ, PLLC., the attorneys of record for the Plaintiffs in the within action; that I have read the foregoing Verified Complaint and know the contents thereof; that the same is true to my knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, I believe them to be true.

The undersigned further states that the reason this Verified Complaint is made by me and not by the Plaintiffs is that the Plaintiffs do not reside within the county in which my office is located.

The grounds of my belief as to all matters stated upon my knowledge are my interviews with the Plaintiff and a reading of the documents in my case file.

The undersigned affirms that the foregoing statements are true, under the penalty of perjury.

Dated: New York, New York
May 18, 2024

/s/ Royce Russell
By: Royce Russell, Esq.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

THOMAS BAPTISTE AND T'SAI ALEXANDER JOSEPH,

Plaintiffs,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER CHRISTIAN PEREZ, TAX ID 966266, POLICE OFFICER MARTIN MORAALMONTE, TAX ID 972126, POLICE OFFICER NICHOLAS CARDIERI, TAX ID 965968, POLICE OFFICER CARLOS ALVAREZ, TAX ID 942945, POLICE OFFICER FRANCESCA LOVERTRO, TAX ID 969181, POLICE OFFICER JULIO MARTINEZ, TAX ID 958882, POLICE OFFICER IHAB GINEM, TAX ID 962433, POLICE OFFICER LARRY FENG, TAX ID 9650087, POLICE OFFICER DENNIS DIAZ, TAX ID 966541, SGT. LEONARDO DEOLIVEIRA, TAX ID 946681, POLICE OFFICER DERICK DEJONGE, TAX ID 968372, POLICE OFFICER DENNIS WU, TAX ID 961463, POLICE OFFICER SARAH CHIRONNO, TAX ID 967000, POLICE OFFICER JEFREY AGUILERA, TAX ID 975265, POLICE OFFICER MEHMET KANBUR, TAX ID 937826, POLICE OFFICER FABIAN MODESTO, TAX ID 950897, POLICE OFFICER DANIEL McDONALD, TAX ID 949299, POLICE OFFICER ANTHONY WARNER, TAX ID 957271, AND POLICE OFFICERS JOHN DOE #1-6 (FICTITIOUS NAMES BECAUSE THEIR IDENTITIES ARE UNKNOWN), ALL SUED IN THEIR INDIVIDUALLY CAPACITY AND AS POLICE OFFICERS,

Defendants.

SUMMONS WITH VERIFIED COMPLAINT

R-SQUARE, ESQ. PLLC.
Attorney for Plaintiff
112 West 34TH Street Fl. 18
New York, NY 10120
(718) 785-8890

To: City of New York
c/o Office of the Corporation Counsel
100 Church Street
New York, NY 10007

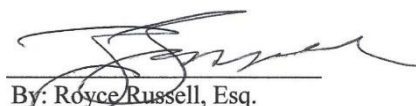
The New York City Police Department
1 Police Plaza
New York, New York 10007

All Named Police Officers
c/o 67th Pct
2820 Snyder Ave.
Brooklyn, NY 11226

Pursuant to 22 NYCRR 130-1.0, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: May 18, 2024

Signature



By: Royce Russell, Esq.

PLEASE TAKE NOTICE

- ☐ NOTICE OF ENTRY
that the within is a (certified) true copy of a duly entered in the office of the
clerk of the within named court on
- ☐ NOTICE OF SETTLEMENT
that a of which the within is a true copy
will be presented for settlement to the HON. one of the judges of the, on